
**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**RULING AND ORDER DENYING
NEWS MEDIA MOTION TO AMEND
MINUTE ENTRY ORDER**

Case No. 251403576

Judge Tony F. Graf, Jr.

Before the Court is the News Media Motion to Amend Minute Entry Order to Allow Use of Portable Electronic Devices by the News Media and Their Counsel (the "Motion"), filed on July 1, 2026. The News Media seeks an exemption from the Court's June 23, 2026 Minute Entry Order, which categorically prohibited the use of portable electronic devices in the courtroom during the preliminary hearing. The State of Utah does not object to the Motion; Defendant Tyler James Robinson opposes the Motion.

Having thoroughly reviewed the pleading, the record, the Court's prior Standing Decorum Orders, the May 8, 2026 Ruling and Order on Defendant's Motion to Exclude Still Photographers, TV Cameras and Microphones (the "May 8 Order"), and the applicable rules of judicial administration and constitutional law, the Court hereby issues this detailed judicial opinion resolving the matter. For the reasons set forth below, the News Media's Motion is respectfully **DENIED**.

I. BACKGROUND AND PROCEDURAL HISTORY

This case has generated an extraordinary level of public and media interest, as reflected in the record. In recognition of the need to maintain order and safeguard the Defendant's constitutional right to a fair trial, the Court has taken several remedial measures throughout these proceedings.

On September 24, 2025, and again on February 24, 2026, the Court entered Standing Decorum Orders establishing standards of conduct for all media representatives and spectators. Among other directives, these orders explicitly warned that, "Consistent with UCJA rule 4-401.02, portable electronic devices may be restricted in certain hearings such as the preliminary hearing and at trial or as otherwise directed by the Court."

On May 8, 2026, the Court issued a Ruling and Order evaluating a motion by the Defendant to categorically exclude electronic media coverage. During an evidentiary hearing preceding that order, the Court received substantial expert testimony regarding the severe pretrial publicity environment surrounding this case. Dr. Bryan Edelman testified that 99 percent of surveyed community members recognize this case, and the public is heavily inundated with real-time commentary that, according to the credited expert testimony, has included inaccurate or prejudicial commentary concerning the case. Dr. Christine Ruva, a cognitive psychologist, testified that to a "reasonable degree of psychological certainty, this case is situated within a highly prejudicial pretrial environment that presents a substantial risk to juror impartiality". While the Court ultimately declined to issue a blanket ban on electronic media coverage at that time, it implemented strict constraints to mitigate prejudice.

On June 23, 2026, citing the "high level of interest in this matter" and concerns that electronic devices "may disrupt and/or compromise the integrity of the preliminary hearing

proceedings," the Court issued a Minute Entry Order prohibiting all portable electronic devices in the courtroom during the preliminary hearing.

The News Media now moves to amend this June 23 Order. The Media argues that, unlike the general public, professional journalists require laptops and smartphones to take notes, compose stories, and "send updates on the proceedings in real time". They further argue that Rule 4-401.02 of the Utah Code of Judicial Administration presumes silent use of electronic devices is permissible.

Because the Motion was filed shortly before the July 6, 2026 preliminary hearing, and because the intervening July 4 holiday limited the time available for full written briefing by the State and Defendant, the Court issues this ruling now to provide the parties, counsel, court staff, and media representatives clear guidance before the preliminary hearing begins.

II. LEGAL STANDARD

The right of the press and the public to attend criminal proceedings is well established. *See Nixon v. Warner Communications, Inc.*, 435 U.S. 589 (1978). However, the United States Supreme Court has made clear that the media does not possess a constitutional right to photograph, video record, or broadcast public hearings and trials from within the courtroom. *See id.* As Justice Harlan noted in *Estes v. Texas*, 381 U.S. 532, 589 (1965) (Harlan, J., concurring), while news-gathering agencies may widely publicize what they hear and see in court, "the line is drawn at the courthouse door".

Furthermore, trial courts bear an affirmative constitutional duty to protect a defendant's right to a fair trial from the prejudicial effects of pretrial publicity. In *Sheppard v. Maxwell*, 384 U.S. 333 (1966), the Supreme Court held that "where there is a reasonable likelihood that

prejudicial news prior to trial will prevent a fair trial," the court must take "remedial measures to abate any threat to the fairness of the proceedings."

Under Utah Code of Judicial Administration Rule 4-401.02, silent use of a portable electronic device inside a courtroom is generally permitted, but that permission is not absolute. Rule 4-401.02(3)(B)(iii) authorizes the judge to impose further restrictions if device use might interfere with the administration of justice, disrupt the proceedings, pose a safety or security threat, compromise the integrity of the proceedings, or threaten the interests of a minor. The Court relies on that case-specific authority here.

This Order addresses only in-court real-time text transmission by data-capable devices. Because text transmission is not the same as "electronic media coverage" as defined in Rule 4-401.01, the Court does not rely on Rule 4-401.01 as an independent prohibition of text reporting. The operative authority for this ruling is Rule 4-401.02(3)(B)(iii).

The Court also recognizes that Rule 4-401.02 anticipates that courtroom observers may use portable electronic devices to transmit news accounts and commentary. That provision informs, but does not eliminate, the judge's express authority to impose further restrictions based on case-specific risks to the administration or integrity of the proceeding. The Court therefore treats this as a time, place, and manner restriction grounded in courtroom administration and fair-trial protection, not as a content- or viewpoint-based restriction on reporting.

III. ANALYSIS

The News Media asserts that journalists and their legal counsel should be exempt from the preliminary hearing device ban because they are experienced with court rules and rely on

devices to provide "timely and accurate information" to the public, including sending updates "in real time."

The Court finds that the specific relief requested presents a material, case-specific risk under Rule 4-401.02 because data-capable devices would permit immediate in-court transmission during a preliminary hearing where contested testimony, proffers, objections, and potentially inadmissible information may arise before the Court can rule, instruct, or otherwise manage the proceeding.

First, the temporary restriction is supported by particularized findings in the existing record. In the Court's May 8 Order, the Court credited expert psychological and sociological testimony demonstrating that the local jury pool is already saturated with pervasive, often inaccurate out-of-court commentary that blurs the line between admitted evidence and public speculation. Dr. Edelman noted that viewers following proceedings online are "inundated with commentary from other viewers spreading misinformation". The Court does not equate text-based reporting with audio or video broadcasting. Nor does the Court restrict criticism, editorial judgment, or publication from outside the courtroom.

However, on the specific record before the Court, the Court finds that real-time text transmission from inside the courtroom during this preliminary hearing would materially increase the risk that contested, incomplete, or inadmissible information will be disseminated before the Court can rule, instruct, or control the proceeding. That risk is most acute at a preliminary hearing, where testimony and proffers may concern contested facts before later rulings on admissibility, relevance, or scope. Temporarily restricting in-court real-time transmission reduces that identified risk and protects the proceeding's integrity.

The Court does not assume that professional journalists will intentionally misreport the proceedings. The concern is structural and timing-based. At a preliminary hearing, evidence may be offered, objected to, limited, clarified, or excluded in rapid sequence. Real-time transmission from inside the courtroom increases the risk that partial accounts of contested matters will circulate before the Court has completed its rulings or before the context of the testimony is apparent. Delayed reporting from outside the courtroom materially reduces that timing risk while preserving public access to the substance of the proceeding.

The Court has considered narrower alternatives, including offline note-taking devices, an audio/video/image ban, transmission only during recesses, wireless-disabled laptops, use of a pooled reporter, and reliance on admonitions alone. The Court finds those alternatives insufficient for this hearing. Wireless-disabled or offline devices would still require courtroom monitoring to determine whether the device remains offline and whether its camera, recording, or transmission functions are being used. Recess-only transmission would not address the difficulty of distinguishing note-taking from live transmission during testimony. A pooled-reporter protocol would reduce the number of devices but would not eliminate the same real-time transmission and monitoring concerns. Admonitions alone would not adequately address the practical enforcement problem created by data-capable devices in the gallery. The Court therefore finds that these alternatives would either fail to address the identified risk or require intrusive monitoring that would distract court staff and risk inconsistent application.

This ruling applies only to the July 2026 preliminary hearing and does not establish a general rule for trial, later hearings, or ordinary courtroom reporting. The Court will consider any renewed request or concrete alternative protocol if circumstances materially change or if a

proposal adequately addresses the specific courtroom-management and fair-trial concerns identified in this Order.

Second, the Court has provided ample, continuous notice that devices could be restricted.

The Court's Standing Decorum Orders explicitly placed all spectators and media representatives on notice that "portable electronic devices may be restricted in certain hearings such as the preliminary hearing". The Court does not question the professionalism of the News Media or counsel. The risk arises from transmission capability, not anticipated misconduct.

The Court further notes that the anticipated press location is in front of the courtroom, in front of the video camera and less than five feet away from counsel tables and Mr. Robinson; permitting camera-capable or data-capable devices in that location would create an additional enforcement concern because such devices could be used, intentionally or inadvertently, to capture images prohibited by the Court's decorum orders, and monitoring compliance from the bench or gallery would risk disrupting the hearing.

The exception for counsel and support staff for the parties rests on their functional role in litigating the hearing, preserving the record, coordinating exhibits, and assisting the Court; it does not reflect a judgment that nonparty counsel are less trustworthy.

Party counsel and their support staff are also subject to direct courtroom supervision, professional obligations tied to the litigation, and immediate remedial authority of the Court in a way that differs from general spectator or nonparty device use.

Third, the restriction is narrowly tailored and complies with Supreme Court precedent.

The Court's order does not close the courtroom, nor does it gag the press. Members of the news media retain their right to attend the preliminary hearing, observe the proceedings, take

handwritten notes, and report on the events once they exit the courtroom, which preserves the core access recognized in *Nixon v. Warner Communications, Inc.* The Court does not treat *Estes* or *Nixon* as dispositive of text reporting by journalists. Rather, those cases inform the narrower principle that the constitutional right of access to courtroom proceedings does not automatically resolve every question concerning the use of particular recording, broadcasting, or transmission tools inside the courtroom.

Under *Sheppard v. Maxwell*, this Court is obligated to take remedial steps to ensure fairness. On the present record, temporarily restricting in-court real-time transmission during this specific preliminary hearing is a measured step reasonably tailored to the Court's fair-trial and courtroom-management obligations.

The Court rejects the premise that UCJA 4-401.02 prohibits this restriction. The plain language of Rule 4-401.02(3)(B)(iii) empowers the presiding judge to restrict devices to prevent interference with the administration of justice. Given the extensive findings made in the May 8 Order regarding the prejudicial pretrial environment, the Court concludes that the use of data-transmitting devices during the preliminary hearing might compromise the integrity of the proceedings within the meaning of Rule 4-401.02(3)(B)(iii).

IV. CONCLUSION AND ORDER

For the foregoing reasons, the Court finds that permitting data-capable portable electronic devices for in-court real-time transmission during the July 2026 preliminary hearing might compromise the integrity of the proceedings within the meaning of Rule 4-401.02(3)(B)(iii) and would materially increase the case-specific fair-trial risks identified in the existing record.

This Order does not restrict reporting, commentary, criticism, publication, or transmission from outside the courtroom, nor does it prohibit any party or media representative from seeking reconsideration based on a concrete alternative protocol.

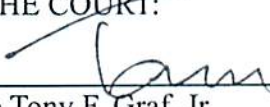
Any renewed request should identify the specific devices proposed, the persons who would use them, the proposed method for preventing real-time transmission, photography, recording, or image capture during testimony, and the manner in which the protocol could be enforced without disrupting the proceedings.

IT IS HEREBY ORDERED that the News Media Motion to Amend Minute Entry Order is respectfully **DENIED**.

The June 23, 2026 Minute Entry Order remains in full force and effect. No portable electronic devices will be permitted in the courtroom during the duration of the preliminary hearing, with the sole exception of legal counsel and support staff for the defense or the State, and equipment specifically permitted under any controlling electronic media coverage order.

Dated this 2nd day of July, 2026.

BY THE COURT:



Judge Tony F. Graf, Jr.
District Court Judge


Used At Direction Of Judge

CERTIFICATE OF NOTIFICATION

I certify that a copy of the attached document was sent to the following people for case 251403576 by the method and on the date specified.

MANUAL EMAIL: KATHRYN NESTER KATHY@NESTERLEWIS.COM

MANUAL EMAIL: STACI VISSER STACI@BROWNBRADSHAW.COM

MANUAL EMAIL: JEFFREY GRAY DCOURT@UTAHCOUNTY.GOV

MANUAL EMAIL: CHAD GRUNANDER CHADGR@UTAHCOUNTY.GOV

MANUAL EMAIL: RYAN MCBRIDE RYANM@UTAHCOUNTY.GOV

MANUAL EMAIL: CHRISTOPHER BALLARD CBALLARD@UTAHCOUNTY.GOV

MANUAL EMAIL: RICHARD NOVAK richard@rgnlaw.com

MANUAL EMAIL: MICHAEL BURT mb@michaelburtlaw.com

MANUAL EMAIL: JEFF HUNT jhunt@parrbrown.com

MANUAL EMAIL: DAVID REYMANN dreymann@parrbrown.com

MANUAL EMAIL: CARISSA URESK curesk@parrbrown.com

MANUAL EMAIL: MICHEAL JUDD mjudd@parsonbehle.com

07/02/2026

/s/ TREENA HANSEN

Date: _____

Signature